

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-029
Amendments to Title 5 of the Chickasaw Nation Code
(Witnesses)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the testimony of witnesses, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 13, Section 5-1306.16 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 5-1306.16

PROCEDURES TO PROTECT THE RIGHTS OF WITNESSES.

A. The court shall employ usual court procedures to protect the rights of a witness, while ensuring the rights of a criminal defendant, the rights of the parties in a civil action, and the integrity of the judicial process.

B. The court, upon motion of counsel, shall conduct a hearing to determine whether the testimony of a witness shall be closed to the public. In making the decision, the court shall consider:

1. The nature and seriousness of the issues in the proceeding;
2. The age of the witness;
3. The relationship, if any, of the witness to the defendant;
4. The extent to which the size of the community would preclude the anonymity of the witness;
5. The likelihood of public disgrace of the witness;

6. Whether there is an overriding public interest in having the testimony of the witness presented in open court;

7. The substantial risk that the identity of the witness would be disclosed to the public during the proceeding;

8. The substantial probability that the disclosure of the identity of the witness would cause serious harm to the witness;

9. Whether the witness has disclosed information concerning the case to the public in a manner which would preclude anonymity of the witness; and

10. Other factors the court may deem necessary to protect the interests of justice.

C. If the court determines that the testimony of the witness is to be closed to the public, the court shall in its order accordingly and set forth the persons who can be present during the taking of testimony of the witness, which shall include:

1. The parties to the proceeding and their counsel;

2. Any officer having custody of the witness;

3. Court personnel as may be necessary to conduct the hearing and maintain order, including but not limited to the judge, the court clerk, the bailiff, and the court reporter;

4. Jury members, if appropriate; and

5. The witness and a Support Person for the witness.

D. The testimony of the witness may be taken in the courtroom, in chambers, or in some other comfortable place. If the testimony of a witness is to be taken in a courtroom, the witness and Support Person shall be assembled in the court chambers prior to the taking of the testimony to meet for a reasonable period of time with the judge and counsel for the parties. At this meeting court procedures shall be explained to the witness, and counsel shall be given an opportunity to establish a rapport with the witness to facilitate taking the testimony of the witness at a later time. The facts involved in the proceeding shall not be discussed with the witness during this meeting.

E. A witness shall have the right to be accompanied by a Support Person while giving testimony in the proceeding, but the Support Person shall not discuss the testimony of the witness with any other witnesses or attempt to prompt or influence the testimony of the witness in any way. In lieu of a Support Person, a witness shall be afforded the opportunity to have a

certified therapeutic dog accompanied by the handler of the certified therapeutic dog pursuant to the provisions set forth in Section 5-1312.9.

F. For purposes of this Section, "Support Person" means a parent, other relative, or a next friend chosen by the witness to accompany the witness to court proceedings.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 13, Article L of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by " * * * "):

ARTICLE L
CHILD WITNESS TESTIMONY BY ALTERNATIVE METHODS

SECTION 5-1312.1 **DEFINITIONS.**

In this Article:

1. "Alternative Method" means a method by which a Child Witness testifies which does not include all of the following:

- a. having the child present in person in an open forum;
- b. having the child testify in the presence and full view of the finder of fact and presiding officer; and
- c. allowing all of the parties to be present, to participate, and to view and be viewed by the child.

2. "Child Witness" means an individual under the age of thirteen (13) who has been or will be called to testify in a proceeding.

3. "Criminal Proceeding" means a trial or hearing before a court in a prosecution of a person charged with violating a criminal law of the Chickasaw Nation or a juvenile delinquency proceeding involving conduct that if engaged in by an adult would constitute a violation of the criminal law of the Chickasaw Nation.

4. "Noncriminal Proceeding" means a trial or hearing before a court or an administrative agency of the Chickasaw Nation having judicial or quasi-judicial powers, other than a Criminal Proceeding.

SECTION 5-1312.2 **APPLICABILITY.**

This Article governs the testimony of Child Witnesses in all Criminal and Noncriminal Proceedings. However, in a Noncriminal Proceeding, this Article does not preclude other procedures permitted by law for presentation of the testimony of a Child Witness.

SECTION 5-1312.3**HEARING WHETHER TO ALLOW TESTIMONY BY
ALTERNATIVE METHOD.**

A. The presiding officer of a Criminal or Noncriminal Proceeding may order a hearing to determine whether to allow presentation of the testimony of a Child Witness by an Alternative Method. The presiding officer, for good cause shown, shall order the hearing upon motion of a party, a Child Witness, or an individual determined by the presiding officer to have sufficient standing to act on behalf of the child.

B. A hearing to determine whether to allow presentation of the testimony of a Child Witness by an Alternative Method must be conducted on the record after reasonable notice to all parties, any nonparty movant, and any other person the presiding officer specifies. The child's presence is not required at the hearing unless ordered by the presiding officer. In conducting the hearing, the presiding officer is not bound by rules of evidence, except for the rules of privilege.

SECTION 5-1312.4**STANDARDS FOR DETERMINING WHETHER A CHILD
WITNESS'S TESTIMONY MAY BE PRESENTED BY
ALTERNATIVE METHOD.**

A. In a Criminal Proceeding, the presiding officer may order the presentation of the testimony of a Child Witness by an Alternative Method only in the following situations:

1. A Child Witness's testimony may be taken other than in an open forum in the presence and full view of the finder of fact if the presiding officer finds by clear and convincing evidence that the child would suffer serious emotional trauma that would substantially impair the child's ability to communicate with the finder of fact if required to testify in the open forum.

2. A Child Witness's testimony may be taken other than in a face-to-face confrontation between the child and a defendant if the presiding officer finds by clear and convincing evidence that the child would suffer serious emotional trauma that would substantially impair the child's ability to communicate with the finder of fact if required to be confronted face-to-face by the defendant.

B. In a Criminal Proceeding, the Child Witness may have an advocate appointed by the court to monitor the potential for emotional trauma. The advocate shall be a professional social worker, psychologist, or psychiatrist.

C. In a Noncriminal Proceeding, the presiding officer may order the presentation of the testimony of a Child Witness by an Alternative Method if the presiding officer finds by a preponderance of the evidence that presenting the testimony of the child by an Alternative Method is necessary to serve the best interests of the child or enable the child to communicate with the finder of fact. In making this finding, the presiding officer shall consider:

1. the nature of the proceeding;

2. the age and maturity of the child;
3. the relationship of the child to the parties in the proceeding;
4. the nature and degree of emotional trauma that the child may suffer in testifying; and
5. any other relevant factor.

SECTION 5-1312.5**FACTORS FOR DETERMINING WHETHER TO PERMIT
ALTERNATIVE METHOD.**

If the presiding officer determines that a standard hereunder has been met, the presiding officer shall determine whether to allow the presentation of the testimony of a Child Witness by an Alternative Method and in doing so shall consider:

1. Alternative Methods reasonably available;
2. available means for protecting the interests of or reducing emotional trauma to the child without resorting to an Alternative Method;
3. the nature of the case;
4. the relative rights of the parties;
5. the importance of the proposed testimony of the child;
6. the nature and degree of emotional trauma that the child may suffer if an Alternative Method is not used; and
7. any other relevant factor.

SECTION 5-1312.6**ORDER REGARDING TESTIMONY BY ALTERNATIVE
METHOD.**

A. An order allowing or disallowing the presentation of the testimony of a Child Witness by an Alternative Method must state the findings of fact and conclusions of law that support the presiding officer's determination.

B. An order allowing the presentation of the testimony of a Child Witness by an Alternative Method must state:

1. the method by which the testimony is to be presented;
2. a list, individually or by category, of the persons either allowed to be present or required to be excluded during the taking of the testimony of the child;

3. any special conditions necessary to facilitate a party's right to examine or cross-examine the child;
4. any condition or limitation upon the participation of persons present during the taking of the testimony of the child; and
5. any other condition necessary for taking or presenting the testimony.

C. The Alternative Method ordered by the presiding officer must be no more restrictive of the rights of the parties than is necessary under the circumstances to serve the purposes of the order.

SECTION 5-1312.7 **RIGHT OF PARTIES TO EXAMINE A CHILD WITNESS.**

An Alternative Method ordered by the presiding officer must permit a full and fair opportunity for examination and cross-examination of the Child Witness.

SECTION 5-1312.8 **USE OF TESTIMONY BY ALTERNATIVE METHODS IN DEPOSITIONS.**

If a deposition of any Child Witness is requested in a civil proceeding, either party, the Child Witness's guardian *ad litem*, or the parent of a Child Witness may motion to the court that the Child Witness's testimony be taken using the provisions for Noncriminal Proceedings under this Article.

SECTION 5-1312.9 **SUPPORT OF A CHILD WITNESS.**

A. This section recognizes the special circumstances and needs of a Child Witness during criminal court proceedings, and to protect the Child Witness from any unnecessary emotional discomfort or anguish.

B. In any Criminal Proceeding, a Child Witness shall have the right to be accompanied by a Support Person while giving testimony in the proceeding, but the Support Person shall not discuss the testimony of the Child Witness with any other witnesses or attempt to prompt or influence the testimony of the Child Witness.

C. The Child Witness shall be afforded the opportunity, if available, to have a Certified Therapeutic Dog accompanied by the handler of the Certified Therapeutic Dog in lieu of a Support Person.

D. As used in this section:

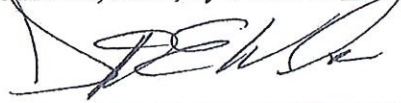
1. "Certified Therapeutic Dog" means a dog which has received the requisite training or certification from the American Kennel Club, Therapy Dogs Incorporated, or an equivalent organization to perform the duties associated with therapy dogs in places such as hospitals, nursing homes, and other facilities where the emotional benefits of

therapy dogs are recognized. Prior to the use of a Certified Therapeutic Dog the court shall conduct a hearing to verify:

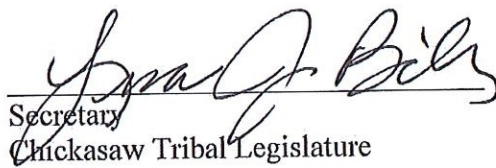
- a. the credentials of the Certified Therapeutic Dog,
- b. the Certified Therapeutic Dog is appropriately insured, and
- c. a relationship has been established between the Child Witness and the Certified Therapeutic Dog in anticipation of testimony.

2. "Support person" means a parent, other relative, or a next friend chosen by the witness to accompany the witness to Criminal Proceedings.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on June 18, 2021, by a vote of 13 ayes, 0 nays, 0 abstentions.

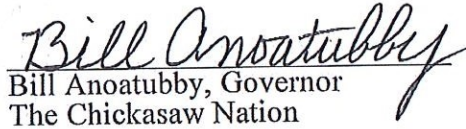


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

JUN 18 2021

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-029
Amendments to Title 5 of the Chickasaw Nation Code
(Witnesses)

Explanation:

This resolution amends the provisions regarding witnesses. The new provisions provide for the protection of vulnerable witnesses from open testimony and provides for alternative methods for examining child witnesses.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature